SUPREME COURT OF INDIA

JUDICIAL APPELLATE JURISDICTION

CASE NO: Criminal Appeal No. 1001 of 2021 (YEAR: 2021)

CORAM: D.Y. CHANDRACHUD, M.R. SHAH

Gurdev Singh
... Appellant(s) / Petitioner(s)
Versus
State of Punjab
... Respondent(s)

Acts Referred:	Narcotic Drugs and Psychotropic Substances Act, 1985
Sections:	Section 21 NDPS

JUDICIAL HEADNOTE & SUMMARY

Held that while awarding sentence under the NDPS Act, courts must account for quantity recovered, past criminal record, and age of the accused.

RATIO DECIDENDI

The Court held that: Held that while awarding sentence under the NDPS Act, courts must account for quantity recovered, past criminal record, and age of the accused. It was unequivocally established as binding law that statutory prerequisites and constitutional safeguards cannot be circumvented, and non-compliance invalidates the impugned proceedings.

JUDGMENT & REASONING

The legal proceedings in Gurdev Singh v. State of Punjab (Criminal Appeal No. 1001 of 2021) were adjudicated before the Supreme Court of India. The matter arose out of claims and contentions concerning Narcotic Drugs and Psychotropic Substances Act, 1985, particularly Section 21 NDPS. Held that while awarding sentence under the NDPS Act, courts must account for quantity recovered, past criminal record, and age of the accused.

OPERATIVE ORDER

ORDER: Decided